

COLLECTIVE BARGAINING for OHIO'S SCHOOLS

Presented by:

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DISCUSSION AGENDA

- **Collective bargaining history in Ohio**
- **Overview of the collective bargaining process**
- **Selecting the Board's team and understanding their role in the process**
- **Preparing for negotiations and setting parameters**
- **Management strategies for successful negotiations**
- **Acronym cheat sheet**
- **Questions and answers**

A BRIEF HISTORY OF COLLECTIVE BARGAINING IN OHIO

Key Concepts:

- A. The Ohio Public Employees' Collective Bargaining Act (RC § 4117)
 - Passed July 1983, effective April 1, 1984
- B. The State Employment Relations Board (SERB)
- C. Evolution of collective bargaining
- D. Public school employee unions
- E. Important concepts: management rights, duty to bargain, good-faith, mandatory vs. permissive subjects of bargaining, contract supremacy, exclusive representation, ULPs, In-term bargaining, etc.
- F. All contracts must include the following:
 - 1. Recognition clause
 - 2. Duration (dates)
 - 3. Negotiation procedure/Impasse resolution process
 - 4. Signature(s) page
 - 5. *Everything else is optional!*

THE COLLECTIVE BARGAINING PROCESS

I. Understanding the bargaining process

- A. Negotiations preparation
- B. Face-to-face bargaining
- C. Impasse procedures
- D. Settlement
- E. Contract administration

II. Bargaining goals

- A. Settle competitive issues
- B. Settle cooperative issues
- C. Resolve internal concerns within the groups involved in the negotiations
- D. Affect the attitudes and perceptions of the other party

III. Bargaining issues

- A. Competitive issues
 - 1. Salary
 - 2. Insurance
 - 3. RIF procedures
 - 4. Paid leaves of absences (sick leave, vacation, personal leave)
 - 5. Prep periods
 - 6. Duty-free lunch periods beyond the statutory minimum
 - 7. Length of work year/workday
 - 8. Workload limitations
- B. Cooperative issues
 - 1. Procedures for posting and filling job vacancies
 - 2. Tuition reimbursement
 - 3. Evaluation procedures
 - 4. Absenteeism procedures if tied to employee incentives
 - 5. Transfer and assignment procedures
 - 6. Promotion procedures

IV. Union and Management

- A. Union roles
 - 1. Job security for individual employees
 - 2. Employee feeling of increased economic well-being
 - 3. Employee sense of control over affairs
 - 4. Degree of control over advancement, security, social acceptability and job design

- B. Management roles
 - 1. Must be knowledgeable in the labor agreement, past practices and legal responsibilities
 - 2. Must not only be good managers, but they also must be skilled tacticians and strategists

SELECTING THE BOARD'S TEAM AND THEIR ROLE IN THE PROCESS

I. Team characteristics

- A. Authority to reach a tentative agreement
- B. Knowledge of the process
- C. Knowledge of the district
- D. Patience
- E. Availability
- F. Even-temperedness

II. Chief spokesperson

- A. Trust of the board
- B. Credible reputation
- C. Fair but firm
- D. Ability to direct communications
- E. Guide preparation process

III. Team members

- A. United, consisted message
- B. No hidden agenda
- C. Able to caucus rather than merely disagree
- D. Observe and take notes
- E. Gather data/resources
- F. Speak when asked a question by board's chief spokesperson

HOW TO PREPARE FOR NEGOTIATIONS

I. Analyze current collective bargaining agreement

- A. Identify ambiguous language
- B. Identify inconsistencies between different articles
- C. Identify outdated language
- C. Identify strengths and weaknesses

II. Review previous negotiation notes

- A. What were the “hot issues?”
- B. What issues were left unresolved?
- C. What was the negotiation environment like?
- D. When and how was a settlement reached?

III. Review what has occurred during the term of the collective bargaining agreement

- A. Court decisions (e.g., evaluation and non-renewal)
- B. Legislative changes (e.g., drug testing)
- C. Administrative decisions (i.e., SERB)
- D. Grievances filed
- E. Changes in union hierarchy
- F. School board decisions

IV. Anticipate union proposals

- A. Local union issues (e.g., closing a building, pending RIF)
- B. State union issue agenda (e.g., fair share fee)
- C. Union bargaining team personal issues
- D. Assess overall relationship between labor and management

V. Proposal development

- A. Consult with building principals, administrators, supervisors, board members, and treasurer to obtain their input on local issues
- B. Review area school district collective bargaining agreements
- C. Establish bargaining objectives
 - 1. Necessary changes = essential
 - 2. Desirable changes = important
 - 3. “Wish list” changes
 - a. Can use for trading
 - b. Too many = board not negotiating seriously
 - c. Too few = board does not expect much
- D. Allow room for movement
- E. Anticipate union reaction

VI. Establish bargaining parameters

- A. Maintain flexibility
- B. Be reasonable and realistic
- C. Assess ability-to-pay and establish the “economic pie”
- D. Determine what union proposals are definite “No’s”

VII. Prepare financial information

- A. Salary schedule analysis
- B. Financial forecast (including future levy plans)
- C. Insurance information
- D. Break-down use of leaves by frequency and type of leave
- E. Obtain information on enrollment trends, class size, turnover, and staffing per building
- F. Cost out other personnel expenses
- G. Cost out all board and union proposals once received

VIII. Collect relevant data/information

- A. Sources of information
 - 1. Other school districts
 - 2. SERB – Division of Research and Training and online access to collective bargaining agreements
 - 3. OSBA publications (*SMN, Journal*) and seminars
- B. Determine set of comparables
 - 1. Contiguous school districts or other county school districts
 - 2. Athletic conference
 - 3. ADM
 - 4. Valuation or revenue per pupil
- C. Gather comparable data
 - 1. Other school districts
 - a. Economic settlements (%)
 - b. Base salary comparison
 - c. Maximum salary comparison
 - d. Number of steps on salary schedule
 - e. Non-economic issues
 - f. Insurance benefits – premiums, deductibles, etc.
 - g. Personal leave, sick leave, and severance pay provisions
 - h. Impasses/strikes
 - 2. Private sector
 - a. Average income in district
 - b. Insurance benefits
 - c. Assess employment trends

IX. Share information

- A. Explain financial condition of school district
- B. Review financial projection and assumptions
- C. Provide cost estimates
- D. Distribute comparable data

X. Understand the negotiation procedure

- A. Ground rules
- B. Timelines
- C. Dispute resolution procedure

XI. Alternative Bargaining models

- A. Recap of “Traditional” negotiations
- B. Other negotiation models (Interest Based Bargaining)
- C. Comparison and contrast/Pro’s and Con’s
- D. Choosing the what works best for your district

MANAGEMENT STRATEGIES FOR SUCCESSFUL NEGOTIATIONS

I. Organization

- A. The bargaining agenda
 - 1. Non-economic issues
 - 2. Economic issues
- B. Meetings
 - 1. Time between meetings
 - 2. Length
 - 3. Time of day
 - 4. Location

II. At the table ...

- A. Handling yourself at the table
 - 1. Understand the negotiations process
 - a. Anticipate the climate of negotiations
 - b. Have the proper attitude about negotiations
 - c. Understand the power factor and make decisions accordingly
 - 2. Attempt to establish a positive climate
 - a. Do not personalize or internalize issues or problems

- b. Be patient and make necessary investments of time and effort
- c. Avoid “beating up” the other side/don’t go for “whole ball of wax” at one time
- d. Do not immediately reject proposals

B. Controlling and manipulating leaks

- 1. Organize the management team and assign appropriate roles to avoid ambiguity and conflict
- 2. Recognize union tactics to disrupt cohesiveness of management team
 - a. Drive the wedge
 - b. Appeal to individual board members
 - c. Public board meetings
 - d. End-run the board’s negotiator

C. Common school board mistakes in teacher negotiations

- 1. Misjudge loyalty to staff
- 2. Need to placate teachers’ union
- 3. “Piecemeal” negotiations
- 4. Inadequate cost analysis
- 5. Unprepared for alternatives
- 6. Premature best offer
- 7. Focus on organization demands
- 8. Use of teacher organizations’ documents

D. Enhancing management’s negotiating role

- 1. Negotiating “Do’s”
 - a. Use negotiations to obtain needed operating changes
 - b. Solicit union input on changes
 - c. Accept suggestions that will not compromise principles
 - d. Trade money for operating principles
 - e. Bend over backwards to be fair
 - f. Keep employees informed on pertinent district information
 - g. Preach the district management principles
 - h. Do a sound job of communicating with both management and employees
 - i. Realize that politics are important to the union
 - j. Prepare a strike contingency plan before negotiations
- 2. Negotiating “Don’t’s”
 - a. Surprise your union

- b. Use retaliation
- c. Try to use union methods
- d. Play labor relations as a game; sound public policy should prevail
- e. Don't use idle threats; don't say the district is going to do something unless it plans to do it
- f. Bribe good behavior
- g. Buy off productivity – expect and require a fair day's work for a fair day's pay
- h. Corner the union

III. Reducing the number of issues

- A. Comprehensive non-contingent counters: Cover all issues to get breakthrough on individual issues
- B. Seeking areas of agreement
 - 1. Uncover and address real problems
 - 2. Emphasize areas of agreement with union demands
- C. Side-bar discussions
 - 1. To minimize rhetoric at the table
 - 2. To explore options with the other side (“Supposals”)
- D. Positioning and packaging
 - 1. Move slowly and incrementally
 - a. May allow more gain in trade-offs
 - b. Gives the other side satisfaction with gains
 - c. Allows settlement at lowest possible cost
 - d. Gives added flexibility
 - 2. Have a predetermined “official” impasse position or package

IV. “Impasse” is not a dirty word – be prepared!

- A. Successful approaches to mediation and impasse
 - 1. Propose a “settlement package,” the board’s impasse position on all remaining issues
 - 2. Not a final offer or “last, best offer” position
 - 3. Concessions may occur, but keep in mind the final cost to the district
 - 4. Withhold significant concessions until the union agrees to “close the deal”
 - 5. Important considerations:
 - a. Timing
 - b. Side-barring
 - c. Packaging

B. During the meetings and mediation

1. Defer to the authority of the mediator and allow the mediator to conduct the meeting
2. Understand which contract items are essential and which are not
 - a. Mediators are tempted to impose additional pressure on the side that cannot see the forest for the trees
 - b. Remember that all your demands will not be achieved; compromise is inevitable in collective bargaining
3. Be careful not to reveal final position on the remaining issues too quickly to the mediator
 - a. Chief negotiator should communicate with mediator
 - b. Uncontrolled free flowing discussion might accidentally reveal final positions before the timing is correct or give mediator issue to use against you
4. Be wary of pressure from the mediator
 - a. Don't panic into making premature concessions
 - b. Seek agreement zone with counter offers
5. Do not be bullied – you can always go home!
6. Do not agree to something the board or school administration cannot live with
7. Do not attack the mediator personally

V. What's next?

A. Strike

1. Contract expiration
2. Impasse procedure exhausted
3. "Ultimate Impasse"
4. Last, best and/or "Final" offer
5. Ten-day notice

B. Binding arbitration

C. Working w/out a contract, Implementation or Repudiation

VI. FYI: Sample Strike Notice



State of Ohio
State Employment Relations Board
65 East State Street, 12th Floor
Columbus, Ohio 43215-4213
(614) 644-8573
(614) 466-3074 Fax

<http://www.serb.state.oh.us/2000%20forms/MED/NTON.PDF>

Case No.

2016-MED-07-0721

NOTICE OF INTENT TO STRIKE OR STRIKE AND PICKET

INSTRUCTIONS: This document is to be sent to SERB and the other party electronically in read only format. A party lacking the capability for electronic service may file a motion for relief from electronic filing requirements pursuant to OAC 4117-1-02(F). See ORC 4117.14(D)(2) and 4117.11(B)(8), OAC 4117-13-01, and related SERB unauthorized strike determinations.	
1. (Check Intention) Notice of Intent to Strike Only ☐	Notice of Intent to Strike and Picket ☒
2. Date and Time when Intended Strike will commence: August 11, 2017	3. Date and Time when Intended Picketing will commence: August 11, 2017 - 12:01 a.m.
4. Name of Employer where Strike or Picketing is to occur: Dayton City School District Board of Education (see attached)	
Address: 115 S. Ludlow St.	Telephone: (937) 542-3973
City, County, State, Zip: Dayton, Montgomery, OH 45402	Email :
5. Name of Employer's Representative: Jyllian Bradshaw	
Address: 115 S. Ludlow St.	Telephone: (937) 542-3000
City, State, Zip: Dayton, OH 45402	Email : jbradsha@dps.k12.oh.us
6. Name of Employee Organization recognized as Exclusive Representative of Employees who Intend to Strike or Strike and Picket: Dayton Education Association, OEA/NEA	
Address: 111 W. First St.	Telephone: (937) 224-7236
City, State, Zip: Dayton, Ohio 45402	Email :
7. Name of Employee Organization's Representative: Scott Maney	
Address: 30 Overbrook Dr., Suite A	Telephone: (513) 539-3131
City, State, Zip: Monroe, OH 45050	Email: maneys@ohea.org
8. Bargaining Unit: (Please attach) ☐ State Employment Relations Board Certification (Current) – for Board-Certified units (or) ☒ Copy of collective bargaining agreement recognition clause – for Deemed-Certified units	9. Approximate Number of Employees in Unit: 1080

ERB1016

Revised (10/13)

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Notice of Intent to Strike or Strike and Picket (ERB 1016 - 10/13)

10. Collective Bargaining Agreement: Are the employee organization and the employer currently parties to a collective bargaining agreement? ☒ Yes ☐ No

If yes, state expiration date: (1) of agreement June 30, 2017 (2) of extension _____ (if any)

Is this regarding negotiations for a REOPENER of the collective bargaining agreement? ☐ Yes ☒ No

If yes, designate: (1) date on which negotiation period ends: _____

(2) section of re-opener provision: _____ (attach copy of provision)

11. Description of efforts made to resolve the dispute, including Statutory or Alternative Dispute Settlement

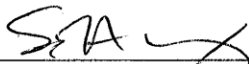
Procedures: The parties have conducted negotiations on the following dates in 2017: January 6, 11, 19, 25;

February 6, 8, 9, 10, 17, 21, 22, 24; March 3, 6, 8, 20, 23; and April 6, 7.

The parties engaged in mediation on the following dates in 2017: May 4, 10, 15, 16, 17, 18, 19 and June 2, 5, 6.

DECLARATION

I declare that I have read the contents of this Notice and that the statements it contains are true and correct to the best of my knowledge and belief.



7/31/17

Signature of Person Attesting to Content of Form

Date

Scott Maney

Print or Type Name

THIS NOTICE WILL NOT BE ACCEPTED FOR FILING IF THE PROOF OF SERVICE IS NOT FULLY COMPLETED AND SIGNED BY A REPRESENTATIVE OF THE EMPLOYEE ORGANIZATION.

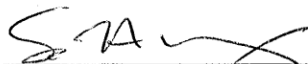
PROOF OF ELECTRONIC SERVICE

I certify that an exact copy of the foregoing Notice of Intent to Strike or Strike and Picket has been sent electronically to:

Jyllian Bradshaw, Esq. Dayton Public School District Board of Education

115 S. Ludlow St., Dayton, Ohio 45402 at jbradsha@dps.k12.oh.us

this 31st (day) of July (month), 2017 (year).



Signature of Person Attesting to Service of Form

Scott Maney
Print or Type Name

COMMON COLLECTIVE BARGAINING ACRONYMS

AAA	American Arbitration Association
AFSCME	American Federation of State, County and Municipal Employees
CBA	Collective Bargaining Agreement
FMCS	Federal Mediation and Conciliation Service
IBB	Interest-Based Bargaining (“win-win” bargaining)
OAPSE	Ohio Association of Public School Employees
ODE	Ohio Department of Education
OEA	Ohio Education Association
OFT	Ohio Federation of Teachers
RIF	Reduction in Force (layoffs)
SERB	State Employee Relations Board
TA	Tentative agreement
ULP	Unfair Labor Practice